

Murli Manohar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 April 2017 · Writ-C No. 18188 of 2017 · **Writ disposed; bill dispute relegated to Act and Supply Code.**

HEADNOTE

A consumer sought mandamus to recast the bill for connection no. 923 in terms of a 1985 civil decree and to restore supply. The Division Bench declined to intervene once the licensee stated that a revised bill had already been served and remained unpaid. Any challenge to a fresh bill is to be pursued under the Electricity Act, 2003 and the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Murli Manohar filed a writ seeking a direction to the Executive Engineer, Electricity Distribution Division-II, Ghazipur, to prepare a fresh bill for connection no. 923 in accordance with a civil court decree dated 3.9.1985 and to restore supply forthwith. Counsel for the distribution licensee stated that a revised bill pursuant to that decree had already been prepared and served, but the amount had not been paid. Petitioner's counsel submitted that an execution case was being pressed and the amount had been deposited.

HOLDING-UNITS

INTERPLAY · UP-2005::

writ-alternate-remedy-bill-dispute

HOLDING

Where the licensee asserts that a decree-compliant revised bill has already been served and is unpaid, and the consumer disputes payment through execution, the writ court will not recast the bill or order reconnection. A dispute to a fresh electricity bill is to be pursued under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer sought mandamus to recast the bill for connection no. 923 in terms of a 1985 civil decree and to restore supply. The Division Bench declined to intervene once the licensee stated that a revised bill had already been served and remained unpaid.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE REVISED BILL CONFORMED TO THE DECREE DATED 3.9.1985

¶ 1

NOT DECIDED — WHETHER THE BILLED AMOUNT HAD BEEN PAID OR DEPOSITED IN EXECUTION

¶ 1

NOT DECIDED — ENTITLEMENT TO RECONNECTION OF CONNECTION NO. 923

¶ 1